



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Sam Berta, Staff Engineer

DATE: April 10, 2023

SUBJECT: Contract Modification #1 to Professional Service Agreement #7606 between the City of Cheyenne and WEST, for environmental services on the Dry Creek Dredging and Maintenance Project.

Please find the attached Contract Modification #1 to Professional Services Agreement #7606 between the City and WEST Inc. for environmental services on the Dry Creek Dredging and Maintenance Project. This modification to the existing agreement will provide additional environmental services focusing on the permitting requirements as well as environmental surveys for futures project areas. This modification will provide the needed environmental services to assist the City coordinate with all governmental agencies to maintain our drainage systems.

Engineering Staff evaluates fee proposals for engineering services based on time and material estimates for the specific project. Those costs are readily tracked and verified during design operations and the City only pays for the actual time expended. We believe this agreement will provide the required services to complete this project.

The fees include services focusing on the permitting and environmental surveys. Funding for this project will come from the 2019 - 2022 1% Specific Purpose Tax Fund (5th Penny). The total professional services will be a cost not-to-exceed \$72,988.00. We respectfully request your approval of this professional services agreement.

CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED as to form only:
By Stefanie Boster at 11:37 am, Apr 18 2023

Contract Modification: #1
Project: Environmental Services Support for Dry Creek and Crow Creek
Dredging
Project Number: Contract # 7606
Contractor: Western EcoSystems Technology Inc.
Date Prepared: April 10, 2023

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Changes would provide for additional necessary environmental services for the Dry Creek Dredging projects. The amended scope of work and construction management fees as shown in attachment are incorporated by reference and made a part hereof.

II. New Contract Items

See attached Proposal from Western EcoSystems Technology Inc.

III. Schedule

Through the completion of the project, currently scheduled for December 31, 2025.

IV. Summary

Original Contract Amount	\$45,098.00
Previous Modifications	\$0.00
Contract Amount Prior to this Modification	\$45,098.00
This Modification	\$72,988.00
New Contract Amount	\$118,086.00

V. GL Account Information

Funding for this project will come from the 2019 - 2022 1% Specific Purpose Tax Fund (5th Penny). The total professional services will be a cost not-to-exceed \$72,988.00.

GL# 020-26-2618-42-43601 Amount: \$72,988.00

VI. Approvals

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne _____ DATE: _____

Mayor Patrick Collins

/ATTEST: City Clerk Kristina F. Jones



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March 24, 2023

Sam Berta
Construction Engineer
City of Cheyenne
2101 O'Neil Ave
Cheyenne, WY 82001

RE: Scope of Work – Environmental Services Support #2

Hello Mr. Berta,

Western EcoSystems Technology Inc. (WEST) is pleased to submit a scope of work and cost estimate to provide environmental services to the City of Cheyenne. The scope of work will focus on Section 404 permitting for Holmes Ditch, Dell Range Drainage Ditch (aka, Meadowland Ditch), and Dry Creek and biological surveys along Dry Creek for the McCormick, Yellowstone Road, Seminoe Road, and Prairie Avenue sections. The permitting approach will vary by drainage, but is summarize here and detailed below. Biological surveys will include aquatic resource inventory and threaten & endangered species review.

1. **Holmes Ditch:** WEST will coordinate with the City and U.S. Army Corps of Engineers (USACE), utilizing previously collected data, to prepare and submit an approved jurisdictional determination (AJD) request. We assume the ditch will receive a non-jurisdictional determination and the maintenance may move forward without addition Section 404 permitting.
2. **Dell Range Drainage Ditch:** WEST will coordinate with the City of Cheyenne, AVI, and the USACE to permit maintenance dredging activities along an approximately 800-foot stretch of Meadowland Ditch. The current approach has identified Nationwide Permit 3 – Maintenance as the preferred route. Fairly basic materials will need to be developed for preparation and submission of the pre-construction notification (PCN).
3. **Dry Creek:** WEST will coordinate with the City of Cheyenne (City), AVI, and the USACE to permit maintenance dredging activities along an approximately 2,200-foot stretch of Dry Creek. The current approach has identified Nationwide Permit 27 – Aquatic Habitat Restoration, Enhancement, and Establishment Activities as the preferred permit pathway. This approach will require development of additional materials (from WEST, City, and AVI) to prepare a PCN and obtain a permit. We assume a notable level of effort from stakeholders to achieve this permit authorization.



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Survey Area

Independent survey areas are included in the scope of work for each Project. Buffers have been added to the biological surveys areas to ensure adequate coverage for planned maintenance. The survey areas will be defined as the following segments:

- Holmes Ditch (~1,200 ft; Figure 1)
- Dell Range Drainage Ditch south from Dell Range to Dry Creek (~800- ft; Figure 2)
- Dry Creek between Ridge Road and College Drive (~2,200 ft; Figure 3)
- McCormack (~1,700 ft; Figure 4)
- Yellowstone Road (~200 ft east [downstream of underpass], Figure 5)
- Seminoe Road (~600 ft east [downstream of underpass], Figure 6)
- Prairie Avenue (~700 ft west [upstream of underpass], Figure 7)

WEST will buffer the stream centerline by approximately 50-ft to ensure full coverage of the area to be impacted. Changes to the survey area are allowable (within reason) to ensure full coverage of proposed maintenance activities.

Task 1: Holmes Ditch AJD Request

WEST will prepare a request for an approved jurisdictional determination (AJD). Based on our initial assessment of the ditch and discussions with the City, it is likely that a non-jurisdictional determination can be obtained for the ditch. Features are exempt from jurisdiction if they meet the following exclusions:

- (b)(3) ditches (including roadside ditches) excavated wholly in and draining only dry land and that do not carry a relatively permanent flow of water;
- (b)(8) swales and erosional features (e.g., gullies, small washes) characterized by low volume, infrequent, or short duration flow.

WEST will develop materials to support the AJD request including the wetland report, aerial imagery showing excavation in uplands, and communicate with the City to document lack of relatively permanent flow and draining only dry land. This information will be compiled into a single digital package and submitted to the USACE – Cheyenne Regulatory Office.

Once submitted, WEST will address questions and/or conduct a site visit with the USACE, if required. We assume one meeting may be required to complete the AJD review process. Assuming a non-jurisdictional determination is received, a Section 404 permit would not be required to perform maintenance activities.



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Task 2: Dell Range Drainage Ditch – NWP 3

WEST will work with the City to prepare and submit a pre-construction notification (PCN) to the Cheyenne USACE office for authorization under a Nationwide Permit 3 – Maintenance (NWP 3). NWP 3, paragraph (b) authorizes removal of accumulated sediments and debris outside the immediate vicinity of existing structures (e.g. bridges, culverted road crossings, etc.). The key factors for NWP 3 qualification include restoring channel conditions to the original design and that activities cannot exceed 200-ft from existing structures. For activities authorized by paragraph (b), the permittee must submit a PCN.

WEST will compile materials sufficient to for submission to the USACE. WEST will communicate with the USACE and City as needed to obtain permit authorization. It is assumed that all original design plans and proposed work plans will be developed and provided by the City (or their representative). WEST will compile the documentation, but will only be responsible for completing forms based on information provided by the City. WEST will utilize the wetland report and threatened and endangered species report as support materials. WEST will discussion any potential permit conditions (e.g., 200-ft maintenance limit) prior to submission, ensure the proposed maintenance plans align with application materials and WEST's understanding of permit conditions.

We assume at least one meeting with the USACE will occur during the permit review process. This may be a field visit, office meeting, or virtual meeting. WEST will coordinate with the City and USACE throughout the process to ensure all data gaps are addressed and that the permit review process runs smoothly. Where possible, the previous Dry Creek NWP 3 authorization process will be followed.

Task 3: Dry Creek – NWP 27

WEST recommends a meeting with the USACE and the City prior to kicking off the Dry Creek permitting. We believe this meeting will identify the framework to obtain a permit and ensure the City believes the current plans will meet the permit conditions. After the meeting, the City may choose to move forward or not move forward with the Project (go/no-go). The meeting will also discuss the potential for an Individual Permit. Assuming the City elects to move forward with a Nationwide permit, the following scope will apply. If an Individual Permit is the preferred option, updates to the scope may be required.

WEST will work with the City to prepare and submit a pre-construction notification (PCN) to the Cheyenne USACE office for authorization under a Nationwide Permit 27 – Aquatic Habitat Restoration, Enhancement, and Establishment Activities (NWP 27). NWP 27 allows removal of accumulated sediments; discharges of dredge or fill materials to restore appropriate stream channel configurations; and modification of the stream bed and/or banks to enhance, rehabilitate, or re-establish stream meanders. Based on conversations with the USACE, the permit application must demonstrate an increase in stream function and value, and cannot simply be presented as



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stream maintenance to reducing flooding. In an effort to meet these stipulations, the follow tasks are identified as part of the scope for WEST (and other stakeholders) to prepare a full application:

- Stream Quantification Tool (SQT): If requested by USACE, WEST will utilize the SQT to identify existing and proposed conditions, with the intent of identifying functions/values gains. We assume geomorphic mapping will be provided by the City (or their representative) for inclusion in the SQT.
- A wetland functional assessment (FACWet) may also be required. WEST will conduct the assessment and prepare the required forms sufficient for USACE review.
- Planting plan for disturbed habitat outside of the stream channel. We understand the channel will remain unvegetated, however adjacent areas should be vegetated to reduce erosion and sedimentation potential.
- The previously developed wetland report and threatened endangered species report will be included in the application.
- Hydrological modeling may be required to support the permit application. We assume the modeling would be provided by the City, but WEST will coordinate to ensure USACE expectation are met.
- WEST will prepare a cover letter to support application delivery.
- WEST will prepare the permit application (however, the City will need to be the signatory).

It is assumed that all original design plans and proposed work plans will be developed and provided by the City (or their representative), additionally support may be required from the City to demonstrate current problematic conditions and justification that proposed design will results in a net-positive stream conditions. WEST will coordinate with the City throughout the process and be the go-between with the USACE.

WEST will compile materials sufficient to for submission to the USACE. WEST will communicate with the USACE and City as needed to obtain permit authorization. We assume up to two meetings with the USACE will occur either prior to or during the permit application preparation process. This may be a field visit, office meeting, or virtual meeting. WEST will not submit the permit until we are confident that the USACE concerns have been addressed and the submission of the permit application will result in issuance of a permit.

Once the permit application has been submitted, WEST will coordinate with the City and USACE to ensure all data gaps are addressed and that the permit review process runs smoothly. WEST will keep the City up to date on the permit progress throughout the scope of work.

Task 4a Aquatic Resource Inventory

WEST will conduct an Aquatic Resources Inventory (ARI) within the four Dry Creek survey areas (Figures 4-7). The same methods will be utilized across each Project; however, a separate cost is provided by section. Surveys will be completed during the 2023 growing season. Due to the



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proximity of the site to the WEST office, mobilization can be rapid to target ideal conditions. An average of 12 hours of field work is assumed for each survey area under this scope.

Prior to conducting the wetland and waters survey, a WEST ecologist will review U.S. Geological Survey (USGS) topographic maps, Natural Resource Conservation Service (NRCS) web soil survey data, U.S. Fish and Wildlife Service (USFWS) National Wetlands Inventory (NWI) maps, and aerial imagery. Any areas identified as potentially jurisdictional will be examined during the site visit. Wetlands will be delineated in accordance with the 1987 Corps of Engineers Wetlands Delineation Manual (Environmental Laboratory 1987) and additional information provided within the Regional Supplement to the Corps of Engineers Wetland Delineation Manual: Great Plains Region (USACE 2010). The 1987 manual emphasizes a three-parameter approach to identify wetlands that may be federally regulated, including the presence of hydrophytic vegetation, hydric soils, and wetland hydrology. These criteria will be applied to establish the presence and extent of wetlands. The delineated wetlands will be classified according to methodologies set forth in Wetlands and Deepwater Habitats of the United States (Cowardin et al., 1979).

Drainage features will be reviewed to determine if they are potential waters of the U.S. (WUS). The determination if all or portions of a drainage are WUS will focus on the presence of an ordinary high water mark as defined by a clear bed and bank, evidence of flow, and/or presence of areas that meet the USACE criteria for wetlands. Each feature must also have surface connection to waters designated navigable to be considered jurisdictional. We assume Dry Creek will be considered jurisdictional; however, we will assess these criteria and make a determination for each wetland and water feature.

Wetland and waters will be surveyed using a sub-meter accurate GPS unit and/or equipped tablet. Wetland conditions will be documented on the USACE Great Plains regional data forms. Photographs will be taken for all sample points and potentially jurisdictional features.

Task 4b – Aquatic Resource Inventory Report

WEST will prepare an ARI report for each Project after completing the field surveys. The report will meet Cheyenne USACE office standards. The report will be brief and include methods, descriptions of any wetland or WUS identified within the survey area, potential jurisdictional status, wetland data forms, photographs, and feature positions plotted on aerial backgrounds. Shapefiles will be provided as a deliverable with each report.

A draft version of the report will be provided within eight weeks of completing the field survey. A final report will be provided within five days of receiving comments. One round of comments is included in the scope of work.

Task 5a – Threatened and Endangered Review

WEST will conduct a threatened and endangered (T&E) species review for each of the four survey areas identified above. The U.S. Fish and Wildlife Service (USFWS) online web tool; Information



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for Planning and Conservation (IPaC) will be used to identify listed and candidate species that may be impacted by the projects. Additionally, WEST will review the USFWS Area of Influence (AOI) dataset to determine if any listed or candidate species ranges intersect the projects. Only species with AOI that intersect the projects will be assessed. We assume the following species will be evaluated based on our knowledge of the area: Ute's ladies'-tresses, Preble's meadow jumping mouse, and monarch butterfly. Any Platte River species (pallid sturgeon, whooping crane, least tern, and western prairie fringed orchid) will not be assessed as part of the project, as depletions are not being proposed.

We assume potential habitat for Ute ladies'-tresses occurs within the four project corridors; thus, WEST will conduct presence/absence surveys for the species during the flowering period. The survey will also include an evaluation of habitat suitability for the species. Note, the USFWS may recommend two years of surveys to confirm absence. Surveys will be conducted by walking meandering transects at an appropriate spacing to provide 100% visual coverage of potential habitat. A comprehensive plant species list will be compiled during the surveys. Populations of Ute ladies'-tresses, if encountered, will be recorded with a sub-meter accurate GPS.

Targeted surveys for Preble's meadow jumping mouse and monarch butterfly require rigorous survey methodologies and are not proposed in this scope; however, habitat suitability assessments will be conducted for the two species to determine potential for occurrence. Spatial data will be collected to document potential suitable habitat. Suitable habitat for the mouse will include dense, structurally-diverse vegetation communities adjacent to relatively permanent waters. The identification of potential monarch butterfly habitat will focus on the presence of pollinators, specifically milkweed species (*Asclepias* spp.). Habitat suitability assessments will occur concurrently with the Ute's ladies'-tresses surveys.

Where appropriate, information gathered and agency discussions that occurred for other segments of Dry Creek surveyed and reported on by WEST will be used to support the projects' analyses.

Task 5b – Threatened & Endangered Assessment Report

WEST will prepare a T&E assessment report for each project after completing the field surveys. The reports will include species and habitat information, existing species data (from USFWS or other regional source [e.g., Wyoming Natural Diversity Database]), methods, and survey results. Maps will be included as appropriate to show survey areas, suitable habitat, and/or species locations. Shapefiles will be provided as a deliverable with each report.

A draft version of the report will be provided within four weeks of completing the field survey. A final report will be provided within five days of receiving comments. One round of comments is included in the scope of work.



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Schedule

WEST will initiate project set up as soon as a signed contract is received. Each project will move forward immediately upon Notice to Proceed (NTP). The following schedule is provided assuming NTP by March 31, 2023. We have included USACE response dates for each project based on our past experience on similar tasks; however, these dates will be dependent on USACE workloads and follow up questions/concerns. Biological surveys will be conducted during the 2023 growing season. Efforts will be made to conduct wetland/waters surveys concurrently with T&E surveys; however, field schedules will be identified based on staff availability.

<i>Project and Description</i>	<i>Timeline</i>
Holmes Ditch	
AJD Form Preparation	April 3 – April 21
AJD Request Submission	April 21
Target USACE Response	June 9 (approximately 60 days from submission)
Dell Range Drainage Ditch	
Permit Application Preparation	April 3 – May 5
USACE Meeting	TBD (likely within preparation period)
Permit Application Submission	May 8
USACE Comments/Updates	May 8 – 22
Permit Authorization	June 23 (approximately 45 days from submission)
Dry Creek (permitting)	
USACE Meeting (target date)	April 10
City go/no-go Decision	April 14
SQT/FACWet	April 14 – 28 (to kick off immediately after go-no/go decision from City)
Project Team additional materials preparation	April 14 – May 5
Permit Application Preparation	May 5 - 19
Permit Application Submission	May 19
USACE Review/Comments	May 19 – July 7
Permit Authorization	July 7 (approximately 45 days from submission)
Dry Creek (4 biological projects)	
Aquatic Resource Inventory	May - September
Report Preparation	September
Threatened and Endangered Survey	July - September
Report Preparation	September



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Cost Estimate

The following cost estimate is provided on a time and expenses basis based on the scope detailed above and assumptions listed below. We believe work associated with Holmes Ditch and Dell Range Drainage Ditch are fairly straightforward. However, Dry Creek is more complicated and has the potential for changes. We will communicate regularly with the City to ensure any out of scope tasks are identified and if budget changes are required, notification is provided before moving forward with services. If requested, a more formal task breakdown can be provided.

Task	Cost (U.S.D. \$)
Holmes Ditch	\$3,375
Dell Range Drainage Ditch	\$4,730
Dry Creek (total)	\$21,053
<i>Agency Meetings</i>	<i>\$3,295</i>
<i>SQT/FACWet</i>	<i>\$12,5430</i>
<i>Team Coordination</i>	<i>\$1,855</i>
<i>PCN</i>	<i>\$3,360</i>
Aquatic Resource Inventory (ARI)	\$12,535
ARI Report Preparation	\$12,120
Threatened and Endangered (T&E) Species Survey	\$7,835
T&E Report Preparation	\$11,340
Total Cost	\$72,988

Assumptions

The following assumptions are provided for the scope of work:

- No technical fieldwork is assumed for Holmes Ditch or Dell Range Drainage Ditch, however site visits will be conducted as appropriate to support USACE review and/or to address data gaps. Fieldwork is proposed for Dry Creek.
- Access to all survey areas will be arranged in advanced by the client
- No changes to the project areas will occur (see Figures 1-7)
- WEST will be responsible for all biological documents (as collected under the previous contract)
- The budget includes costs to purchase historic aerials in support of JD and permit application
- Travel may be required to mobilize crews who will perform the SQT and/or FACWet.
- Construction and other design plans will be provided by the City
- Work schedule will be dependent on notice to proceed and signed contract; specific authorizations will be dependent on USACE progress
- No mitigation planning is included in the scope



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- WEST will provide guidance throughout the permit process, providing options and expectations/requirements, but it will ultimately be the City's responsibility to make decision on Project design and permit approach
- Wetland field work will be conducted by two biologists
- Ute ladies'-tresses surveys will be conducted by one biologist
- Only Ute's ladies-tresses will have targeted surveys; habitat suitability assessments will be conducted for the other species
- Agency outreach may be required and up to 2, 30 min phone calls are included for each project
- One ARI and one T&E report will be prepared for each Project

Thank you for the opportunity to support the City with these projects.

Sincerely,

Luke Martinson
Biologist - Senior Manager



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Figure 1. Holmes Ditch Project Area (approximate)



Figure 2. Dell Range Drainage Ditch Project Area (approximate)



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Figure 3. Dry Creek Project Area (approximate)



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Figure 4. McCormick Survey Area



Figure 5. Yellowstone Road Survey Area



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Figure 6. Seminoe Road Survey Area



Figure 7. Prairie Avenue Survey Area